

HALSTEAD & CRUZ LLP

Trial Lawyers

88 South Grand Avenue, Suite 2400 • Los Angeles, California 90071

Telephone: (213) 555-0170

January 16, 2026

VIA HAND DELIVERY

Alder Creek Transit District
Attn: Clerk of the Board / Risk Management
1200 Alder Creek Way
Rivergate, CA 91766

Re: **Presentation of Government Claims — Gov. Code § 910**

Claimants: **Devin Cho** and **Alicia Mowbray**

Incident Date: **10/18/2025**, approx. 02:05 a.m.

Location: South Main Street at Third Avenue, Rivergate, California

Our File Nos.: HC-2025-P-0221 (Cho); HC-2025-P-0222 (Mowbray)

Clerk of the Board:

Enclosed for presentation to the Alder Creek Transit District pursuant to California Government Code sections 910 and 915(a) are two (2) written claims:

1. Claim of **Devin Cho** (passenger); and
2. Claim of **Alicia Mowbray** (passenger),

arising out of the collision that occurred on **10/18/2025** at approximately 02:05 a.m. when an ACTD Owl-service bus operated by employee Raymond T. Keeler struck a fixed street-light standard and continued off-course while Mr. Keeler was intoxicated and impaired. Each claimant was a fare-paying passenger aboard the bus at the time of the collision.

Each claim sets forth the information required by Gov. Code § 910. The amount of each claim exceeds ten thousand dollars (\$10,000). As permitted and required by Gov. Code § 910(f), the specific dollar amount is not stated; each claim would be an **unlimited-civil** case if litigated (jurisdictional amount over \$25,000, Code Civ. Proc. § 88).

This firm is retained as counsel for both claimants and has authority to receive all correspondence, notices, warnings, and determinations under Gov. Code §§ 910.8, 911, 913, and 915.4 on their behalf. Please direct all future communications concerning these claims to the undersigned at the address above.

Please date-stamp the enclosed acknowledgment copy of this transmittal and return it to the messenger. Kindly assign claim numbers and confirm receipt in writing at your earliest convenience.

Very truly yours,

HALSTEAD & CRUZ LLP

/s/ *Nora Halstead*

Nora Halstead (SBN 369314)

Attorney for Claimants Devin Cho and Alicia Mowbray

Enclosures (2): Government Claim Form — Devin Cho; Government Claim Form — Alicia Mowbray

RECEIVED JAN 16 2026 ALDER CREEK TRANSIT DISTRICT <i>Office of the Clerk of the Board</i> By: _____ Time: _____
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CLAIM AGAINST ALDER CREEK TRANSIT DISTRICT

(Presented pursuant to California Government Code § 910 et seq.)

Public Entity: Alder Creek Transit District ("ACTD"), 1200 Alder Creek Way, Rivergate, CA 91766	Form: ACTD Government Claim Claimant Information Statement	Date Presented: 01/16/2026
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CLAIMANT INFORMATION				
LAST NAME Cho		FIRST NAME Devin		MIDDLE INITIAL J.
DATE OF BIRTH 09/14/2002	TELEPHONE NUMBER (626) 555-0142		EMAIL ADDRESS d.cho.rn@student-mail.edu	
MAILING ADDRESS 245 Elm Avenue, Apt 12		CITY Rivergate	STATE CA	ZIP 91766
BUSINESS NAME (if applicable) N/A		INMATE OR PATIENT ID (if applicable) N/A		
IS THE CLAIMANT UNDER 18 YEARS OF AGE? ☒ Yes ☒ No		INSURED NAME (Insurance Company / Subrogation) None currently asserted		
IS THIS AN AMENDMENT TO A PREVIOUSLY EXISTING CLAIM? ☒ Yes ☒ No		EXISTING CLAIM NUMBER N/A	EXISTING CLAIMANT NAME N/A	
ADDRESS TO WHICH NOTICES ARE TO BE SENT (Gov. Code § 910(b)) Nora Halstead, Esq., Halstead & Cruz LLP, 88 South Grand Avenue, Suite 2400, Los Angeles, CA 90071.				

ATTORNEY OR REPRESENTATIVE INFORMATION				
LAST NAME Halstead		FIRST NAME Nora		MIDDLE INITIAL —
STATE BAR NUMBER 369314				
FIRM Halstead & Cruz LLP		TELEPHONE NUMBER (213) 555-0170	EMAIL ADDRESS nhalstead@halstead-cruz.com	
MAILING ADDRESS 88 South Grand Avenue, Suite 2400		CITY Los Angeles	STATE CA	ZIP 90071

CLAIM INFORMATION		
PUBLIC ENTITY / EMPLOYEES AGAINST WHOM THE CLAIM IS FILED Alder Creek Transit District (public entity, Gov. Code § 811.2); and its employee Raymond T. Keeler , ACTD Bus Operator, Badge No. 4417, acting in the course and scope of employment on ACTD Owl Route 512.		
DATE OF INCIDENT 10/18/2025	TIME OF INCIDENT Approximately 02:05 a.m.	DOLLAR AMOUNT OF CLAIM Not stated (exceeds \$10,000)
LATE-CLAIM EXPLANATION (required if incident was more than six months ago) Not applicable. This claim is presented within the six-month statutory period prescribed by Gov. Code § 911.2 (accrual 10/18/2025; six-month window closes 04/20/2026).		
CIVIL CASE TYPE (required if amount is more than \$10,000) ☒ Limited (\$25,000 or less) ☒ Non-Limited / unlimited-civil (over \$25,000)		
DOLLAR AMOUNT EXPLANATION (Gov. Code § 910(f)) Because the amount claimed exceeds ten thousand dollars (\$10,000), no specific dollar amount is stated. The claim would be a case of unlimited-civil jurisdiction (Code Civ. Proc. § 88). Damages include past and future medical expenses (orthopedic surgical treatment, hospitalization, imaging, rehabilitation, follow-up care), lost earnings and impairment of earning capacity (nursing-school clinical schedule disruption; work-restricted for approximately eight weeks), general damages for physical pain, mental suffering, disfigurement (surgical scarring), and loss of enjoyment of life, together with all further items of damage recoverable under California law.		

GOVERNMENT CLAIM

ACTD ORIM-001 (Rev. 03/24)

INCIDENT LOCATION

Southbound South Main Street at Third Avenue, Rivergate, County of Los Angeles, California — aboard ACTD bus #4177 operating Owl-service Route 512, at and immediately north of the northbound bus stop on Main Street just north of Third Avenue.

SPECIFIC DAMAGE OR INJURY DESCRIPTION

Claimant sustained the following injuries as a proximate result of the collision:

- Closed displaced fracture of the right tibia and fibula, treated with open reduction and internal fixation (ORIF) surgery;
- Grade 2 concussion / mild traumatic brain injury with brief loss of consciousness;
- Associated soft-tissue injuries, contusions, and abrasions;
- Post-operative pain, immobilization, and functional impairment of the right lower extremity;
- Four (4) days of inpatient hospitalization; approximately eight (8) weeks of work and school-clinical restrictions;
- Ongoing physical therapy, orthopedic follow-up, and residual scarring at the surgical site.

Special damages (medical expenses, lost earnings/earning capacity) and general damages (pain, suffering, disfigurement, loss of enjoyment of life) are ongoing and continuing as of the date of presentation. All bills, records, and wage documentation will be produced upon request.

CIRCUMSTANCES THAT LED TO DAMAGE OR INJURY

On the early morning of 10/18/2025 at approximately 02:05 a.m., claimant was a fare-paying passenger aboard an ACTD Owl-service bus (Route 512, bus #4177) operated by ACTD employee Raymond T. Keeler. Mr. Keeler was on-duty and had clocked in at approximately 22:00 the previous evening (10/17/2025). While operating the bus on South Main Street approaching Third Avenue, Mr. Keeler — who was intoxicated by alcohol and impaired — lost consciousness at the wheel, allowed the bus to leave its travel lane, struck a City of Rivergate street-light standard on the west side of South Main Street, and continued off-course before coming to rest. Claimant was thrown from her seat and injured as described above. Mr. Keeler was arrested at the scene at approximately 02:35 a.m. A roadside preliminary breath test and subsequent certified evidentiary blood draw confirmed alcohol intoxication.

EXPLAIN WHY YOU BELIEVE THE PUBLIC ENTITY IS RESPONSIBLE FOR THE DAMAGE OR INJURY

ACTD is vicariously liable under the doctrine of respondeat superior and Gov. Code § 815.2(a) for the tortious acts of its employee committed in the course and scope of employment. Mr. Keeler was on-duty, in uniform, driving an ACTD-owned bus in revenue service, on an ACTD-assigned run (Owl Route 512), when he negligently and unlawfully operated the vehicle while under the influence of alcohol (Veh. Code §§ 23152(a), (b); 23153) and lost control. ACTD is further directly liable for negligent hiring, training, supervision, retention, and monitoring of Mr. Keeler as its operator, including failures under its Federal Transit Administration-mandated drug- and alcohol-testing program (49 C.F.R. Parts 40, 655) and its DMV employer pull-notice program. As a common carrier (Civ. Code §§ 2100–2101), ACTD owed claimant the highest degree of care consistent with the practical operation of its conveyance and breached that duty. ACTD is also liable for the acts and omissions of its dispatch, supervisory, and safety personnel to the extent they permitted an unfit operator to remain in service. All applicable statutory bases for public-entity liability are asserted.

VEHICLE / TRANSIT INFORMATION

DOES THE CLAIM INVOLVE AN ACTD

☒ Yes ☐ No

ACTD BUS / VEHICLE NUMBER

4177 (Owl Route 512, block ID 512-OWL)

ACTD DRIVER NAME

Raymond T. Keeler (Badge #4417)

HAS A CLAIM BEEN FILED WITH YOUR OWN INSURANCE CARRIER?

☒ Yes ☐ No

INSURANCE CARRIER NAME

N/A

INSURANCE CLAIM NUMBER

N/A

HAVE YOU RECEIVED AN INSURANCE PAYMENT FOR THIS

☒ Yes ☐ No

AMOUNT RECEIVED (if any)

\$0.00

AMOUNT OF DEDUCTIBLE (if any)

N/A

NOTICE AND SIGNATURE

I declare under penalty of perjury under the laws of the State of California that all the information I have provided is true and correct to the best of my information and belief. I further understand that if I have provided information that is false, intentionally incomplete, or misleading I may be charged with a felony punishable by up to four years in state prison and/or a fine of up to \$10,000 (Penal Code § 72). Executed at Los Angeles, California.

SIGNATURE

/s/ Devin J. Cho

PRINTED NAME

Devin J. Cho

DATE

01/16/2026

COUNSEL'S ACKNOWLEDGMENT AND SIGNATURE

The undersigned, as counsel of record for the above-named claimant, presents this claim under Gov. Code §§ 910 and 915(a) and requests that all correspondence, notices, and determinations be directed to counsel at the address shown above.

SIGNATURE <i>/s/ Nora Halstead</i>	PRINTED NAME Nora Halstead, SBN 369314	FIRM Halstead & Cruz LLP	DATE 01/16/2026
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CLAIM AGAINST ALDER CREEK TRANSIT DISTRICT

(Presented pursuant to California Government Code § 910 et seq.)

Public Entity: Alder Creek Transit District ("ACTD"), 1200 Alder Creek Way, Rivergate, CA 91766	Form: ACTD Government Claim Claimant Information Statement	Date Presented: 01/16/2026
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CLAIMANT INFORMATION				
LAST NAME Mowbray		FIRST NAME Alicia		MIDDLE INITIAL R.
DATE OF BIRTH 01/30/1985	TELEPHONE NUMBER (626) 555-0155		EMAIL ADDRESS a.mowbray85@westmail.net	
MAILING ADDRESS 719 Cedar Street		CITY Rivergate	STATE CA	ZIP 91766
BUSINESS NAME (if applicable) N/A		INMATE OR PATIENT ID (if applicable) N/A		
IS THE CLAIMANT UNDER 18 YEARS OF AGE? ☒ Yes ☒ No		INSURED NAME (Insurance Company / Subrogation) None currently asserted		
IS THIS AN AMENDMENT TO A PREVIOUSLY EXISTING CLAIM? ☒ Yes ☒ No		EXISTING CLAIM NUMBER N/A	EXISTING CLAIMANT NAME N/A	
ADDRESS TO WHICH NOTICES ARE TO BE SENT (Gov. Code § 910(b)) Nora Halstead, Esq., Halstead & Cruz LLP, 88 South Grand Avenue, Suite 2400, Los Angeles, CA 90071.				

ATTORNEY OR REPRESENTATIVE INFORMATION				
LAST NAME Halstead		FIRST NAME Nora		MIDDLE INITIAL —
STATE BAR NUMBER 369314				
FIRM Halstead & Cruz LLP		TELEPHONE NUMBER (213) 555-0170	EMAIL ADDRESS nhalstead@halstead-cruz.com	
MAILING ADDRESS 88 South Grand Avenue, Suite 2400		CITY Los Angeles	STATE CA	ZIP 90071

CLAIM INFORMATION		
PUBLIC ENTITY / EMPLOYEES AGAINST WHOM THE CLAIM IS FILED Alder Creek Transit District (public entity, Gov. Code § 811.2); and its employee Raymond T. Keeler , ACTD Bus Operator, Badge No. 4417, acting in the course and scope of employment on ACTD Owl Route 512.		
DATE OF INCIDENT 10/18/2025	TIME OF INCIDENT Approximately 02:05 a.m.	DOLLAR AMOUNT OF CLAIM Not stated (exceeds \$10,000)
LATE-CLAIM EXPLANATION (required if incident was more than six months ago) Not applicable. This claim is presented within the six-month statutory period prescribed by Gov. Code § 911.2.		
CIVIL CASE TYPE (required if amount is more than \$10,000) ☒ Limited (\$25,000 or less) ☒ Non-Limited / unlimited-civil (over \$25,000)		
DOLLAR AMOUNT EXPLANATION (Gov. Code § 910(f)) Because the amount claimed exceeds ten thousand dollars (\$10,000), no specific dollar amount is stated. The claim would be a case of unlimited-civil jurisdiction (Code Civ. Proc. § 88). Damages include past and future medical expenses, physical therapy, diagnostic imaging, lost earnings and diminished earning capacity, general damages for physical pain, mental and emotional suffering, and loss of enjoyment of life, together with all further items of damage recoverable under California law.		
INCIDENT LOCATION Southbound South Main Street at Third Avenue, Rivergate, County of Los Angeles, California — aboard ACTD bus #4177 operating Owl-service Route 512.		

GOVERNMENT CLAIM

ACTD ORIM-001 (Rev. 03/24)

SPECIFIC DAMAGE OR INJURY DESCRIPTION

Claimant sustained the following injuries as a proximate result of the collision:

- Cervical soft-tissue strain (whiplash-type injury) with associated muscle spasm and reduced range of motion;
- Lumbar soft-tissue strain with paraspinal muscle involvement;
- Multiple contusions to the left shoulder, left hip, and left lateral chest wall;
- Headaches and cervicogenic pain;
- Treated and released the same day at emergency department; approximately six (6) weeks of physical therapy; approximately three (3) weeks on light-duty work restriction from her employment as a home health aide;
- Ongoing intermittent pain and functional limitation as of the date of presentation.

Special damages (medical expenses, physical therapy, lost earnings) and general damages (pain, suffering, loss of enjoyment of life) continue to accrue. All bills, records, and wage documentation will be produced upon request.

CIRCUMSTANCES THAT LED TO DAMAGE OR INJURY

On the early morning of 10/18/2025 at approximately 02:05 a.m., claimant was a fare-paying passenger aboard an ACTD Owl-service bus (Route 512, bus #4177) operated by ACTD employee Raymond T. Keeler. Mr. Keeler was on-duty, having clocked in at approximately 22:00 the previous evening (10/17/2025). While operating the bus on South Main Street approaching Third Avenue, Mr. Keeler — who was intoxicated by alcohol and impaired — lost consciousness at the wheel, allowed the bus to leave its travel lane, struck a City of Rivergate street-light standard, and continued off-course. Claimant was thrown against interior fixtures of the bus and injured as described above. Mr. Keeler was arrested at the scene at approximately 02:35 a.m., and both a roadside preliminary breath test and a subsequent certified evidentiary blood draw confirmed alcohol intoxication.

EXPLAIN WHY YOU BELIEVE THE PUBLIC ENTITY IS RESPONSIBLE FOR THE DAMAGE OR INJURY

ACTD is vicariously liable under respondeat superior and Gov. Code § 815.2(a) for the tortious acts of its employee committed within the course and scope of employment. Mr. Keeler was on-duty, in uniform, and operating an ACTD-owned bus in revenue service on an ACTD-assigned run when he negligently and unlawfully operated the vehicle while under the influence of alcohol (Veh. Code §§ 23152(a), (b); 23153). ACTD is further directly liable for negligent hiring, training, supervision, retention, and monitoring of Mr. Keeler as its operator, including alleged failures within its FTA-mandated drug- and alcohol-testing program (49 C.F.R. Parts 40, 655) and DMV employer pull-notice program. As a common carrier (Civ. Code §§ 2100–2101), ACTD owed claimant the highest degree of care consistent with the practical operation of its conveyance and breached that duty. All applicable statutory bases for public-entity liability are asserted.

VEHICLE / TRANSIT INFORMATION

DOES THE CLAIM INVOLVE AN ACTD VEHICLE? ☒ Yes ☐ No	ACTD BUS / VEHICLE NUMBER 4177 (Owl Route 512, block ID 512-OWL)	ACTD DRIVER NAME Raymond T. Keeler (Badge #4417)
HAS A CLAIM BEEN FILED WITH YOUR OWN INSURANCE CARRIER? ☒ Yes ☐ No	INSURANCE CARRIER NAME N/A	INSURANCE CLAIM NUMBER N/A
HAVE YOU RECEIVED AN INSURANCE PAYMENT FOR THIS DAMAGE OR INJURY? ☒ Yes ☐ No	AMOUNT RECEIVED (if any) \$0.00	AMOUNT OF DEDUCTIBLE (if any) N/A

NOTICE AND SIGNATURE

I declare under penalty of perjury under the laws of the State of California that all the information I have provided is true and correct to the best of my information and belief. I further understand that if I have provided information that is false, intentionally incomplete, or misleading I may be charged with a felony punishable by up to four years in state prison and/or a fine of up to \$10,000 (Penal Code § 72). Executed at Los Angeles, California.

SIGNATURE /s/ Alicia R. Mowbray	PRINTED NAME Alicia R. Mowbray	DATE 01/16/2026
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COUNSEL'S ACKNOWLEDGMENT AND SIGNATURE

The undersigned, as counsel of record for the above-named claimant, presents this claim under Gov. Code §§ 910 and 915(a) and requests that all correspondence, notices, and determinations be directed to counsel at the address shown above.

SIGNATURE /s/ Nora Halstead	PRINTED NAME Nora Halstead, SBN 369314	FIRM Halstead & Cruz LLP	DATE 01/16/2026
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